

CHAPTER 21

HEALTH ACADEMY COURSES AND DEPARTMENT FEES

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§21-01 Scope and applicability.

This Chapter describes the courses offered and fees authorized to be charged by the Department of Health and Mental Hygiene (the “Department”) Health Academy and fees authorized to be charged by the Department.

§21-02 Food protection courses and fees.

- (a) *Attending Department classes or taking an on-line course.* In accordance with §81.15 of the New York City Health Code (the “Health Code”), or successor provision, the Department’s food protection course provides training and instruction to supervisors of food service operations in food service establishments in subject matter and principles deemed necessary by the Department to promote compliance with the requirements of the Health Code, the State Sanitary Code and other applicable law. Persons taking the course may attend the course in person, or may take the course on-line.
 - (1) The fee payable to the Department by persons attending the course in person, including the costs of issuance of a food protection certificate, shall be one hundred fourteen dollars (\$114.00).
 - (2) The fee payable to the Department by persons taking the course on line, including the examination and costs of issuance of a food protection certificate, shall be twenty- four dollars (\$24.00).
- (b) *Certificates for other approved food protection courses and fee.*
 - (1) In accordance with §81.15(c) of the Health Code, or successor rule, persons completing Department-approved food protection courses offered at other institutions shall attend a class and receive training in requirements of the Health Code, State Sanitary Code, and other applicable law, and shall take the examination required by the Department prior to issuance of a Department food protection certificate.
 - (2) The fee payable to the Department for the costs of administering such examination and issuance of a food protection certificate, shall be thirty-four dollars (\$34.00).
- (c) *Quality improvement food protection course and fee.*
 - (1) To train food service establishment supervisors in applying active managerial approaches to food safety, through development of quality improvement plans, implementing Hazard Analysis Critical Control Point (HACCP) plans, employee training, self-inspection, and food safety record keeping, with the objective of improving sanitary conditions and eliminating practices and

procedures contributing to food-borne illnesses. Persons fulfilling course requirements shall receive a certificate of successful completion.

- (2) The fee payable to the Department by persons taking the course, including the costs of issuing a certificate of completion shall be ninety-eight dollars (\$98.00).

(d) *Mobile food vendor food protection course and fee.*

- (1) In accordance with §§81.15(a)(1) and 89.07(b) of the Health Code, or successor provisions, all persons applying for a new mobile food vending license shall submit proof of successful completion of the Department's, or a Department approved equivalent, mobile food vendor food protection course, providing basic information on food safety deemed essential for compliance with requirements of the Health Code, State Sanitary Code and other applicable law.
- (2) The fee payable to the Department for this course, including the costs of issuance of a mobile food vendor food protection certificate, shall be fifty-three dollars (\$53.00).

§21-04 Animal care and handling techniques course and fee.

- (a) In accordance with §161.09(h) and (k) of the Health Code, or successor rule, the Department's animal care and handling techniques course shall provide instruction/training deemed essential by the Department to promote compliance with the Health Code, and other applicable law.
- (b) The fee payable to the Department for the animal care and handling techniques course shall be thirty-nine dollars (\$39.00).

§21-05 Tattooist infection control course and fee.

- (a) In accordance with §21-05 of Chapter 21 (Tattooists and Applying Tattoos) of these Rules, or successor rule, the Department's course in infection control practices for persons applying tattoos provides information about infection risks, and required infection control practices and techniques in applying tattoos. When the applicant passes the examination, the Department shall notify and provide a photograph of the applicant to the permit director and a license shall be issued to the applicant.
- (b) The fee payable to the Department for the tattooist infection control course and examination shall be twenty-six dollars (\$26.00).

§21-06 Course completion certificates; replacement fees.

- (a) A person successfully completing a Health Academy course shall receive a certificate containing such person's photograph.
- (b) When a certificate is reported lost, damaged or stolen, the Department shall verify that the requestor successfully completed the applicable course and issue a replacement certificate. The fee payable to the Department for issuance of a replacement certificate shall be sixteen dollars (\$16.00).

§21-07 Food service establishment consultative inspections and fees.

(a) *Consultative inspections.*

(1) *Voluntary consultation.* In accordance with New York City Administrative Code §17-1504, the Department will provide a consultative inspection to a person operating or applying for a permit to operate a food service establishment, as defined in New York City Health Code §81.03, on how to operate the establishment in compliance with the Health Code and other applicable law.

(2) *Priority and scheduling of consultative inspections.*

(i) The Department will give priority to conducting consultative inspections at establishments that have a history of two or more inspections with a score of 28 or more points per inspection during the preceding 12 months, and at establishments whose operators request a consultative inspection when they are applying for their first permit, if they have not already been inspected and cited for operating without a permit.

(ii) For permitted establishments, consultative inspections will be scheduled so that they do not occur during the establishment's inspection cycle.

(iii) All consultative inspections are contingent on the availability of Department resources.

(b) *Fees.* The fee for a permittee requesting a consultative inspection at an existing establishment is four hundred dollars (\$400). The fee for an applicant for a new permit requesting a consultative inspection prior to the establishment's first inspection by the Department is one hundred dollars (\$100).